EASEMENT FOR ELECTRIC FACILITIES

SAP# 1030013203
Design# 10594221
Agreement # MI00000018080

Jim Tibbe Homes, LLC, a Michigan limited liability company, whose address is, 1777 R W Berends Dr SW Wyoming MI 49519 (hereinafter "Owner")

for good and valuable consideration [*exempt from real estate transfer tax pursuant to MCLA 207.505(f) and from State real estate transfer tax pursuant to MCLA 207.526(f)*] grants and warrants to

CONSUMERS ENERGY COMPANY, a Michigan corporation, One Energy Plaza, Jackson, Michigan 49201 (hereinafter "Consumers")

a permanent easement to enter Owner's land (hereinafter "Owner's Land") located in the Township of Algoma, County of Kent, and State of Michigan as more particularly described in the attached Exhibit A to construct, operate, maintain, inspect (including aerial patrol), survey, replace, reconstruct, improve, remove, relocate, change the size of, enlarge, and protect a line or lines of electric facilities in, on, over, under, across, and through a portion of Owner's Land (hereinafter "Easement Area") as more fully described in the attached Exhibit B, together with any pole structures, poles, or any combination of same, wires, cables, conduits, crossarms, braces, guys, anchors, transformers, electric control circuits and devices, location markers and signs, communication systems, utility lines, protective apparatus and all other equipment, appurtenances, associated fixtures, and facilities, whether above or below grade, useful or incidental to or for the operation or protection thereof, and to conduct such other activities as may be convenient in connection therewith as determined by Consumers for the purpose of transmitting and distributing electricity.

Additional Work Space: In addition to the Easement rights granted herein, Owner further grants to Consumers, during initial construction and installation only, the right to temporarily use such additional work space reasonably required to construct said lines. Said temporary work space shall abut the Easement Area, on either side, as required by construction.

Access: Consumers shall have the right to unimpaired access to said line or lines, and the right of ingress and egress on, over, and through Owner's Land for any and all purposes necessary, convenient, or incidental to the exercise by Consumers of the rights granted hereunder.

Trees and Other Vegetation: Owner shall not plant any trees within the Easement Area. Consumers shall have the right from time to time hereafter to enter Owner's Land to trim, cut down, and otherwise remove and control any trees, brush, roots, and other vegetation within the Easement Area. Consumers shall have the right from time to time hereafter to enter Owner's Land to trim, cut down, and otherwise remove and control any trees, brush, or other vegetation located outside of the Easement Area which are of such a height or are of such a species whose mature height that in falling directly to the ground could come into contact with or land directly above Consumers' facilities.

Buildings/Structures: Owner agrees not to build, create, construct, or permit to be built, created, or constructed, any obstruction, building, septic system, drain field, fuel tank, pond, swimming pool, lake, pit, well, foundation, engineering works, installation or any other type of structure over, under, or on said Easement Area, whether temporary or permanent, natural or

man-made, without the express authorization of Consumers, which may be withheld in Consumers' sole discretion, recorded in the register of deeds for the county in which Owner's Land is situated expressly allowing the aforementioned.

Ground Elevation: Owner shall not materially alter the ground elevation within the Easement Area without the express authorization of Consumers, which may be withheld in Consumers' sole discretion, recorded in the register of deeds for the county in which Owner's Land is situated expressly allowing the aforementioned.

Exercise of Easement: Consumers' nonuse or limited use of this Easement shall not preclude Consumers' later use of this Easement to its full extent.

Ownership: Owner covenants with Consumers that they are the lawful fee simple owner of the aforesaid lands, and that they have the right and authority to make this grant, and that they will forever warrant and defend the title thereto against all claims whatsoever.

Successors: This easement shall bind and benefit Owner's and Consumers' respective heirs, successors, lessees, licensees, and assigns.

Counterparts: This easement may be executed simultaneously in two or more counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. It is not necessary that all parties execute any single counterpart if each party executes at least one counterpart.

Date: 6-5-15

Owner: Jim Tibbe Homes, LLC, a Michigan limited liability company

James G. Tibbe, Member

Acknowledgment

The foregoing instrument was acknowledged before me in Kent County, Michigan, on June 5, 2015 (Date) by James G. Tibbe, Member of Jim Tibbe Homes, LLC, a Michigan limited liability company, on behalf of the company.

KAREN J DYKSTRA
Notary Public - Michigan
Ottawa County
My Commission Expires Apr 9, 2020
Acting in the County of Kent

Karen J Dykstra
Notary Public
Ottawa County, Michigan
Acting in Kent County
My Commission expires: April 9, 2020

Prepared By: Alan Poling
Consumers Energy Company
4000 Clay Ave SW
Grand Rapids MI 49548-3017

After recording, return to:
Carrie Main, EP7-437
Business Services
Consumers Energy Company
One Energy Plaza
Jackson, MI 49201

EXHIBIT A

Owner's Land

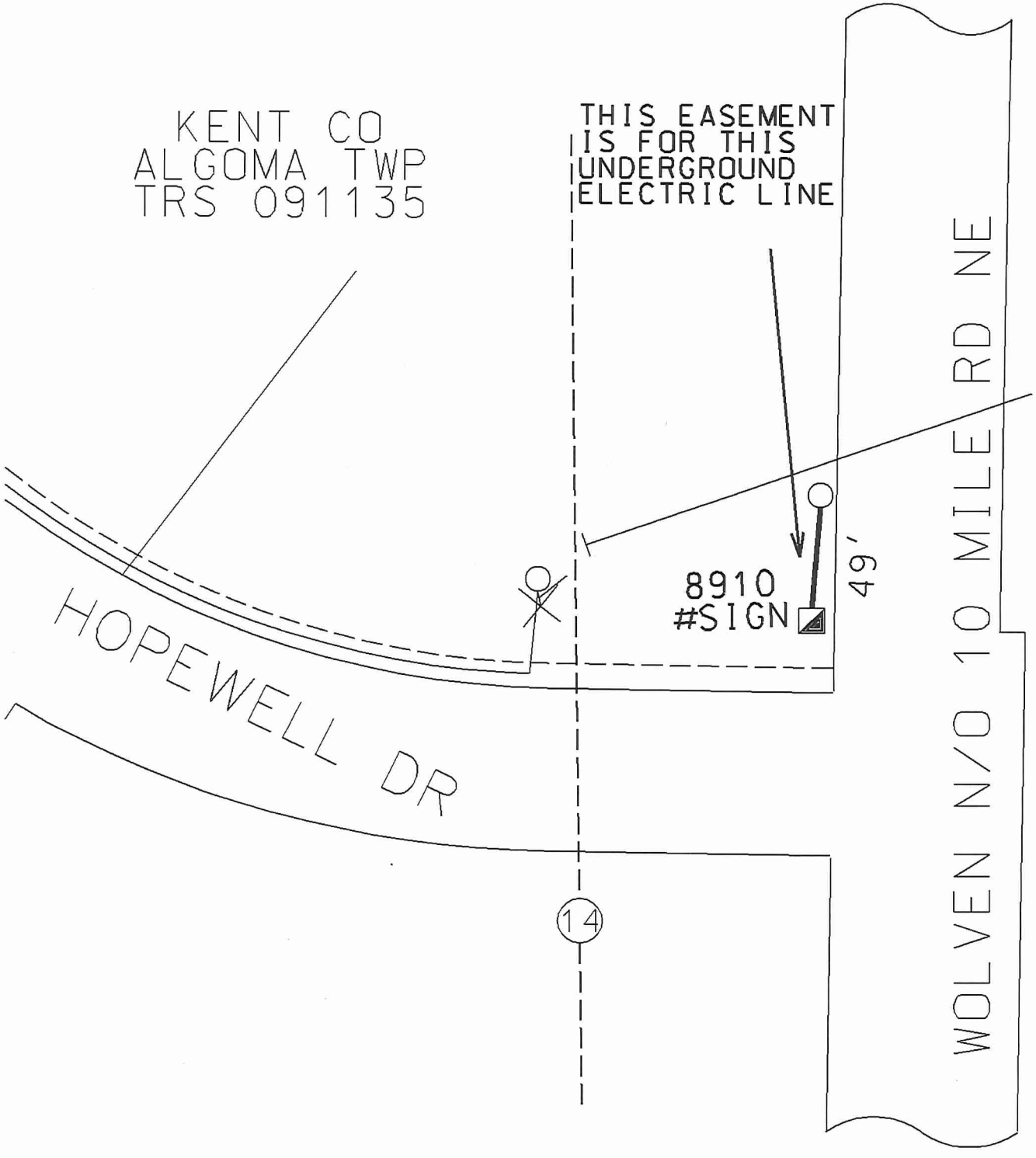
Unit 25, 43 North, being that part of the Northwest 1/4 of Section 35, T9N, R11W, Algoma Township, Kent County, Michigan, according to the Master Deed recorded in Document No. 20141113-0094509, Kent County Records, as amended, and designated as Kent County Condominium Subdivision Plan No. 982, together with rights in the general common elements and the limited common elements as shown on the Master Deed and as described in Act 59 of the Public Acts of 1978, as amended.

(41-06-35-120-025; 8910 Hopewell Dr NE Rockford 49341)

EXHIBIT B

Easement Area

A 12 foot-wide strip of land, being 6 feet on each side of the centerline of the line constructed on Owner's Land, the centerline to be located approximately as shown in the attached drawing.


KENT CO
ALGOMA TWP
TRS 091135
THIS EASEMENT
IS FOR THIS
UNDERGROUND
ELECTRIC LINE
8910
#SIGN
49'
HOPEWELL DR
14
WOLVEN N/O 10 MILE RD NE